# I DO NOT NEED A COURT TO TELL ME WHAT I HAVE SURVIVED

## Barran Dodger Master Record of Survival, Notice, Institutional Response and the Standards Those Institutions Claim to Uphold

This is my record. It is my determination of what I lived through, what I put before each body, what each body did with it, and what I was left to carry afterwards.

I do not need a court to tell me what I have lived through. I do not need a police officer to certify the consequences of decisions that have shaped my life. I do not need a politician to grant permission for my testimony to be heard. I have asked for help, pursued the available avenues, documented my circumstances and continued to survive when the assistance I needed did not produce meaningful change.

I have survived not because the system rescued me, but in spite of the system's failure to change the circumstances I have repeatedly brought to its attention.

I reject the language that turns my determination into a reason to dismiss my experience, or that treats the absence of a court judgment as permission to disregard the documentary record and my testimony. My survival is not evidence that I was adequately supported. The fact that I am still here does not erase what it has taken to remain here.

I maintain that I have been subjected to decisions, refusals and circumstances that caused me serious detriment. I have documented the institutions I approached, the responses I received, the restrictions I encountered and the practical consequences that followed. I am entitled to state my conclusions from that experience without having my words rewritten to protect the reputations of the institutions whose conduct I am challenging.

Nor should the payment of money be used to create the appearance that meaningful support has been provided when my actual circumstances remain substantially unchanged. A payment is not a solution merely because it appears in an administrative ledger. A referral is not assistance merely because it is recorded as an action. A letter is not accountability merely because it closes a file. The question is what changed in my life, what needs remained unmet, and what happened after those responsible were informed.

I challenge the pattern in which institutions can make decisions with serious consequences, leave me to bear those consequences, and then rely on limited knowledge, divided responsibilities, procedural explanations or subsequent justifications to distance themselves from the outcome. I want the actual records examined: what each institution knew, when it knew it, what it decided, what alternatives it offered, and whether those alternatives could realistically resolve the problem.

I refuse to accept administrative distance as a substitute for human responsibility.

I refuse to let the language of process become a shield against the consequences of process. I refuse to have my testimony diminished simply because the institutions I challenge have not accepted my account or because no single authority has taken responsibility for the whole picture.

My archive exists because I have had to preserve the record myself. It connects correspondence, decisions, complaints, acknowledgements and personal testimony across institutions that have dealt with separate parts of my circumstances. I ask readers to examine that record as a connected chronology and to confront the questions it raises rather than dismiss them because they are uncomfortable.

I do not need permission to describe my own experience. I do not need an official's approval to explain the consequences I have endured. I do not need to pretend that a process worked simply because a process occurred.

I have survived. That is my determination, not the system's defence.

If institutions believe they acted appropriately, their records should be examined in full. If they believe they provided meaningful assistance, they should identify precisely what was provided and how it changed my circumstances. If they say they were unaware, the chronology should establish what information reached them and when. If they say another body was responsible, the record should show what happened to the person passed between them.

I am not asking for a convenient story about why nothing could be done. I am demanding an honest account of what was done, what was not done, what consequences followed and who will now take meaningful responsibility for addressing the situation.

I have carried the consequences. I have preserved the evidence. I have continued to speak.

I have survived not because they saved me, but in spite of the absence of the meaningful help I needed. My survival does not absolve anyone. It makes the unanswered questions impossible to dismiss.

The record remains. My testimony remains. And I will not rewrite my experience to make the institutions I challenge more comfortable with it.

## 1. Primary sources

https://github.com/wezzo72/Barrandodger

https://wezzo72.github.io/Barrandodger/

https://wezzo72.github.io/barrandodger-rebuild/

https://wezzo72.github.io/Barrandodger/official-government-documents-register.html

https://drbarrandodger.github.io/barran-dodger-archive/

https://barrandodger.com/main

https://www.barrandodger.com.au/

https://bazdod.github.io/

## 2. The system's own standards, applied to its own record

I am not asking these institutions to apply a standard invented for my benefit. I am asking them to apply the standards they already claim to uphold: procedural fairness, lawful decision-making, reasons, accessible review, disability inclusion, privacy, transparency, safeguarding, accountability and effective service.

Where an institution says it followed process, the question is whether its process met its own stated obligations. Where it says another body was responsible, the question is whether it transferred the person or merely transferred the problem. Where it says it lacked knowledge, the question is what notice it received, when, and what it did with that notice.

| Standard the system claims | What that standard requires | The question I put to each institution |
|---|---|---|
| Procedural fairness | A person affected by a decision should generally know the case against them, have a real opportunity to respond, and receive reasons and review information where required. | What issue was put to me? What opportunity did I have to answer it? Were reasons and review rights given? |
| Lawful authority | A decision-maker should identify the power being exercised and apply the correct legal test to the facts. | What power was used? What test was applied? Were the relevant facts considered? |
| Reasons and transparency | A decision should explain what was decided, why, on what evidence, and what alternatives were considered. | What reasons were given? What evidence was relied on? What alternatives were rejected, and why? |
| Accessible review | A review or complaint pathway should be more than technically available; it should be usable by the person affected. | What review was offered? Could I realistically use it given my circumstances, resources, disability, communication restrictions or lack of representation? |
| No transfer without handover | A referral should transfer the issue with enough information for the receiving body to act; it should not simply move the person on. | What information was sent? Did the next body accept it? What happened to the unresolved part? |
| Disability inclusion | Services and decisions should recognise disability-related barriers, communication needs, independence, safety and participation. | Were my disability-related circumstances identified? Were access barriers addressed? Was independence considered before decisions such as vehicle disposal? |
| Safeguarding | Bodies with protective functions should act on risk, deterioration and reported harm rather than treating them as outside scope. | What risk was reported? What was assessed? What protective action followed? |
| Privacy and records | Agencies should search records properly, explain what was found or not found, and give reasons for disclosure decisions. | What was searched? What was located? Why was anything withheld, delayed or later released? |
| Accountability for cumulative impact | Each body should consider the consequences of its decisions within its knowledge and authority, especially where it knows the person is being passed between systems. | Did anyone assess the combined effect of the decisions? Who took responsibility for the person left behind? |
| Effective assistance | Assistance should produce a practical change in the person's circumstances, not merely create a record of contact. | What changed? What needs remained? What would have made the assistance effective? |

## 3. People register

Inclusion records a person's appearance in the available record. Responsibility must be traced through the document, date, role, authority and action.

| Name | My record of role / context | Source basis |
|---|---|---|
| Dr Richard William McLean / Dr Richard McLean | I am the witness, archive subject and person whose circumstances are recorded here. | Uploaded master register; public Barran Dodger material. |
| Barran Dodger | My public and creative identity, associated with the archive and publications. | Public Barran Dodger material. |
| Scott Tredwell | Named in the 8 January 2024 Federal Court / DSS / superannuation / NDIS CEO context; publicly indexed material describes a Federal Court General Counsel role. | Uploaded master register; public indexed material. |
| A. Riley | Named in archive notes concerning MC23-028244, dated 19 September 2023, and an IGIS/Ombudsman pathway. | Uploaded master register. |
| Rebecca Falkingham | Preliminary named-person lead. | Uploaded master register. |
| Ray Griggs | Preliminary named-person lead. | Uploaded master register. |
| Emma McBride | Preliminary named-person lead. | Uploaded master register. |
| Steve Iasonidis | Preliminary named-person lead. | Uploaded master register. |
| Dr Richard Moore | Preliminary named-person lead. | Uploaded master register. |
| Dr Dina | Preliminary named-person lead. | Uploaded master register. |
| Dr Horgan | Preliminary named-person lead. | Uploaded master register. |
| Dr Ibrahim | Preliminary named-person lead. | Uploaded master register. |
| Dr Qwong | Preliminary named-person lead. | Uploaded master register. |
| Dr Parker | Preliminary named-person lead. | Uploaded master register. |
| Dr McCurdy | Preliminary named-person lead. | Uploaded master register. |
| Dr Whittaker | Preliminary named-person lead. | Uploaded master register. |

## 4. Places and jurisdictions

| Place / jurisdiction | My record of its connection | Source / verification |
|---|---|---|
| Australia | National jurisdiction for Commonwealth bodies and federal legal questions. | Uploaded master register. |
| Victoria | State jurisdiction connected with WorkSafe Victoria, IBAC and the Victorian police minister context in MC25-000321. | Uploaded master register. |
| New South Wales | State jurisdiction connected with NSW Trustee and Guardian, Legal Aid NSW, NCAT, the Public Guardian and the NSW Ombudsman. | Uploaded master register. |
| Canberra / ACT | Likely administrative location of several Commonwealth bodies; actual locations must be confirmed from primary records. | Inferred administrative jurisdiction. |
| Melbourne / Footscray, Victoria | Location publicly associated with me in indexed material; not treated as verified residential or event location without a primary record. | Public indexed material. |
| Wyong, New South Wales | Court-context location in publicly indexed material; underlying court record must be located. | Public indexed material. |

## 5. Organisations and institutions

| Organisation | Documentary lead | Source / verification |
|---|---|---|
| Department of the Prime Minister and Cabinet | FOI/2022/045; 31 May 2022; 12 December 2022; 8 October 2024. | Uploaded master register. |
| Office of the Australian Information Commissioner | RQ22/00794; approximately 1,187 PM&C; Outlook items. | Uploaded master register. |
| Attorney-General's Department | MC23-028244; MC25-000321. | Uploaded master register. |
| Independent Broad-based Anti-corruption Commission | CASE-2020712; CASE-20213522; CASE-20215102; CASE-20231101; CASE-20233846. | Uploaded master register. |
| Commonwealth Ombudsman | 8 August 2025 service/correspondence restriction. | Uploaded master register. |
| Comcare | 26 May 2021 and 18 October 2021 employee-status decisions. | Uploaded master register. |
| WorkSafe Victoria | 15 November 2021 correspondence. | Uploaded master register. |
| NDIS Quality and Safeguards Commission | 3 June 2021 employee-status issue; 01110547 acknowledged 18 September 2026. | Uploaded master register. |
| Federal Court of Australia | 27 March 2023 public interest disclosure assessment. | Uploaded master register. |
| Department of Social Services | 8 January 2024 correspondence context. | Uploaded master register. |
| Australian Human Rights Commission | April 2024 complaint/correspondence. | Uploaded master register. |
| NSW Trustee and Guardian | 16 October 2024 section 122-related document; 14 November 2025 vehicle disposal. | Uploaded master register. |
| Legal Aid NSW | January 2026 restriction/advice correspondence. | Uploaded master register. |
| NSW Civil and Administrative Tribunal | Around October 2025 review context. | Uploaded master register. |
| Public Guardian | Around October 2025 review context. | Uploaded master register. |
| NSW Ombudsman | NSWO10824000660; 16 September 2026. | Uploaded master register. |
| Barran Dodger Legal & Ethical Trust Fund | Archive and publication entity; publicly indexed material records ABN 78 833 496 164. | Public indexed material. |

## 6. Documentary evidence map

These are the records I identify as central. Each must be read in full, in sequence, and beside my testimony.

| Record ID | Body | Reference / date | What I require the record to answer |
|---|---|---|---|
| PM&C-01; | PM&C; | FOI/2022/045; 31 May 2022; 12 December 2022; 8 October 2024 | What was searched, located, released, withheld or explained. |
| OAIC-01 | OAIC | RQ22/00794; approximately 1,187 PM&C; Outlook items | What was known, searched, handled and disclosed. |
| AGD-01 | Attorney-General's Department | MC23-028244; 19 September 2023 | What was referred, what jurisdiction was claimed, and what remained unresolved. |
| AGD-02 | Attorney-General's Department | MC25-000321; 6 February 2025 | What was raised, referred, closed or redirected. |
| IBAC-01 | IBAC | CASE-2020712; 9 April 2020 | What was assessed and what was left unresolved. |
| IBAC-02 | IBAC | CASE-20213522; CASE-20215102; 12 April 2022 | How related complaints were treated. |
| IBAC-03 | IBAC | CASE-20231101; CASE-20233846; 29–30 October 2023 | What was assessed, excluded or redirected. |
| COMOMB-01 | Commonwealth Ombudsman | 8 August 2025 restriction | What communication was restricted, on what basis, and what practical avenue remained. |
| COMCARE-01 | Comcare | 26 May 2021; 18 October 2021 | How employee status was determined and what consequences followed. |
| WS-01 | WorkSafe Victoria | 15 November 2021 | What responsibility was accepted, declined or referred. |
| NDISC-01 | NDIS Commission | 3 June 2021 | How the employee-status issue was handled. |
| NDISC-02 | NDIS Commission | 01110547; 18 September 2026 | What the acknowledgement covered and what action followed. |
| FCA-PID-01 | Federal Court | 27 March 2023 | What was assessed, excluded or left without a remedy. |
| DSS-01 | DSS / superannuation / NDIS CEO context | 8 January 2024 | What was communicated, decided and left unresolved. |
| AHRC-01 | Australian Human Rights Commission | April 2024 | What rights and events were considered, and what remedy was identified. |
| NSWTA-01 | NSW Trustee and Guardian | 16 October 2024 | What authority was exercised and what safeguards applied. |
| NSWTA-02 | NSW Trustee and Guardian | 14 November 2025 | What vehicle decision was made, on what basis, and what it cost me in independence and access. |
| LEGALAID-01 | Legal Aid NSW | January 2026 | What assistance was sought, refused, restricted or made unavailable. |
| NCAT-PG-01 | NCAT / Public Guardian | Around October 2025 | What was reviewed, excluded or left unresolved. |
| NSWOMB-01 | NSW Ombudsman | NSWO10824000660; 16 September 2026 | What was considered and what practical route remained. |

## 7. Chronology of notice and response

| Date | Body / reference | What the record concerns |
|---|---|---|
| 9 April 2020 | IBAC — CASE-2020712 | Complaint/assessment lead. |
| 26 May 2021 | Comcare | Employee-status decision. |
| 3 June 2021 | NDIS Commission | Employee-status issue. |
| 18 October 2021 | Comcare | Further employee-status decision. |
| 15 November 2021 | WorkSafe Victoria | Correspondence lead. |

| Date | Body / reference | What the record concerns |
|---|---|---|
| 31 May 2022 | PM&C; | Correspondence lead. |
| 12 April 2022 | IBAC — CASE-20213522 / CASE-20215102 | Complaint leads. |
| 12 December 2022 | PM&C; | Correspondence lead. |
| 27 March 2023 | Federal Court | PID assessment. |
| 19 September 2023 | AGD — MC23-028244 | IGIS/Ombudsman pathway. |
| 29–30 October 2023 | IBAC — CASE-20231101 / CASE-20233846 | Further IBAC material. |
| 8 January 2024 | DSS / superannuation / NDIS CEO context | Correspondence lead. |
| April 2024 | Australian Human Rights Commission | Complaint/correspondence lead. |
| 8 October 2024 | PM&C; | Later FOI material. |
| 16 October 2024 | NSW Trustee and Guardian | Section 122-related document. |
| 6 February 2025 | AGD — MC25-000321 | Victorian police minister context. |
| 8 August 2025 | Commonwealth Ombudsman | Service/correspondence restriction. |
| Around October 2025 | NCAT / Public Guardian | Review context. |
| 14 November 2025 | NSW Trustee and Guardian | Vehicle disposal decision. |
| January 2026 | Legal Aid NSW | Restriction/advice correspondence. |
| 16 September 2026 | NSW Ombudsman — NSWO10824000660 | Complaint reference. |
| 18 September 2026 | NDIS Commission — 01110547 | Acknowledgement. |

## 8. Repository and preservation inventory

| Measure | Reported figure | What it means |
|---|---|---|
| Repository tree entries | 7,054 | Reported retrieved tree; stated as not truncated. |
| PDF files | 3,844 | File count only. |
| HTML files | 1,877 | File count only. |
| TXT files | 805 | File count only. |
| Preservation-backup manifest | 660 pages or entries | Manifest count. |
| PDF manifest | 623 discovered PDF links | 97 downloaded; one skipped; 525 download errors in reported run. |
| Document catalogue header | 545 records, including 531 PDFs | Detailed retrieved catalogue incomplete. |
| People registry | One person record in retrieved data | Not a complete list of everyone named. |
| Organisations registry | 20 seeded organisation records | Seed records, not completed findings. |

Preservation, hashes and timestamps help show that material existed and can be checked. They do not replace reading the record, and they do not excuse anyone from answering what they knew and what they did.

## 9. What I survived

I survived without the help that should have been available. I survived through restrictions, refusals, delays, referrals, lost independence, restricted communication and institutions treating my circumstances as someone else's jurisdiction.

I did not survive because the system worked. Where it worked at all, it worked too late, too narrowly, or without changing the circumstances that placed me at risk. I will not allow that fact to be rewritten as cooperation, resolution, closure or lack of awareness.

My survival is evidence. My testimony is evidence. The dated records are evidence. Together, they show what I asked for, what was known, what was done, what was refused, and what I was left to carry.

## 10. What I refuse

• I refuse to accept that my experience must be reduced to a complaint outcome, a jurisdictional boundary, a procedural technicality or an administrative closure.

• I refuse to accept that a payment, acknowledgement or referral is equivalent to meaningful support where my circumstances did not materially change.

• I refuse to accept that institutions may describe themselves as unaware after receiving notice, without explaining what they did with that notice.

• I refuse to participate in language that shifts the burden onto me, minimises the consequences, or treats my survival as proof that no harm occurred.

• I refuse to let institutional reputation be protected by erasing the human consequences recorded in my archive.

## 11. Verification and record discipline

For every person, place, organisation and document: locate the primary record; record its title, date, reference, author and decision-maker; quote or accurately summarise the operative part; state what it establishes and what it does not; connect it to earlier and later records; separate direct documentary evidence from my testimony and inference; and mark it as unchecked, located, source verified, contents checked or independently corroborated.

## 12. Source links

https://github.com/wezzo72/Barrandodger

https://wezzo72.github.io/Barrandodger/

https://wezzo72.github.io/barrandodger-rebuild/

https://wezzo72.github.io/Barrandodger/official-government-documents-register.html

https://drbarrandodger.github.io/barran-dodger-archive/

https://barrandodger.com/main

https://www.barrandodger.com.au/

https://bazdod.github.io/

I remain. The records remain. My account remains. The questions remain.